

CODE OF CIVIL PROCEDURE § 128.7 SAFE-HARBOR LETTER

Case No.: CGC-25-631801

Case: ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Re: Defendant's Motion to Strike under CCP § 436 filed April 22, 2026

Service Date: April 22, 2026

21-Day Clock Expiration: May 14, 2026, 5:00 p.m. Pacific

VIA ELECTRONIC SERVICE

April 22, 2026

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Re: Safe-Harbor Notice Under CCP § 128.7(c)(1) — CGC-25-631801

Dear Counsel:

Pursuant to Code of Civil Procedure § 128.7(c)(1), this letter serves as formal notice that Plaintiff intends to file a motion for sanctions under § 128.7 against Defendants and/or their counsel of record based on the filing of Defendants' Motion to Strike under CCP § 436 dated April 22, 2026.

I. STATUTORY FRAMEWORK

Code of Civil Procedure § 128.7(b) provides that by presenting a pleading, written motion, or other paper to the court, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances:

“(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

“(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

“(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.”

II. DEFECTS IN THE MOTION TO STRIKE

Plaintiff contends that Defendants’ Motion to Strike violates § 128.7(b) in at least the following particulars:

Defect 1: CCP § 435(b)(1) Timing Violation

The motion to strike under CCP § 436 was not filed concurrently with or before Defendants’ demurrer and anti-SLAPP motion. CCP § 435(b)(1) requires that a motion to strike “shall be made within the time allowed to respond to a pleading, however, if a demurrer is also filed, the motion to strike shall be made at the same time as the demurrer is filed and shall be noticed for hearing at the same time.” Defendants’ demurrer was filed April 3, 2026. The MTS was filed April 22, 2026—19 days late and waived as a matter of law.

Defect 2: CCP § 435.5 Meet-and-Confer Deficiency

Defendants’ MTS does not contain a § 435.5 declaration demonstrating that counsel “met and conferred” with Plaintiff in person, by telephone, or by video conference before filing the motion, as required by § 435.5(a). The statute requires actual oral communication—not email or letter—at least five days before the motion is filed. No such declaration is attached.

Defect 3: CCP § 430.80 Waiver Doctrine — PH II

The motion seeks to strike allegations on grounds that constitute demurrer grounds in disguise. Under *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682–83, a motion to strike cannot be used as a “backdoor demurrer” to attack the sufficiency of a cause of action. The MTS improperly invokes CCP § 436(b) to challenge legal sufficiency arguments that belong in a demurrer, which Defendants already filed and waived the MTS timing for.

Defect 4: Frivolous *Throckmorton* Argument

The MTS relies on *United States v. Throckmorton* (1878) 98 U.S. 61, a non-binding federal case superseded by California Supreme Court authority: *Kulchar v. Kulchar* (1969) 1 Cal.3d 467; *In re Marriage of Modnick* (1983) 33 Cal.3d 897; *Estate of Sanders* (1985) 40 Cal.3d 607. Reliance on non-binding authority while ignoring controlling Supreme Court precedent is not warranted by existing law.

Defect 5: Misrepresentation of Procedural Posture

The MTS argues allegations are “unsupported” without acknowledging that Plaintiff has lodged certified transcript excerpts documenting the February 28, 2025 judicial-reliance colloquy and the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213:13–15). The factual contentions have evidentiary support.

Defect 6: Improper Purpose — Harassment and Delay

The MTS was filed on the last possible day to gain maximum calendaring delay, notwithstanding that Defendants had already filed a demurrer and anti-SLAPP motion raising substantially overlapping arguments. This suggests an improper purpose to multiply litigation costs and delay resolution.

III. SAFE-HARBOR NOTICE AND DEADLINE

Pursuant to CCP § 128.7(c)(1), Defendants have **21 days** from the date of service of this letter to withdraw or appropriately correct the challenged paper.

Service Date: April 22, 2026

21-Day Safe-Harbor Deadline: May 14, 2026, 5:00 p.m. Pacific

If Defendants do not withdraw or correct the Motion to Strike by the safe-harbor deadline, Plaintiff intends to file a motion for sanctions under § 128.7 on the next court day following expiration (May 15, 2026), seeking:

1. Reasonable expenses, including attorney’s fees (or self-represented litigant out-of-pocket expenses), incurred in responding to the MTS;
 2. An order striking the MTS in its entirety as frivolous and filed for improper purpose;
 3. Such other sanctions as the Court deems appropriate under § 128.7(d).
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IV. WITHDRAWAL INSTRUCTIONS

To avoid a sanctions motion, Defendants may withdraw the Motion to Strike by:

1. Filing a Notice of Withdrawal with the Court; and
2. Serving Plaintiff with a copy of the Notice of Withdrawal by 5:00 p.m. Pacific on May 14, 2026.

If the MTS is corrected rather than withdrawn, Plaintiff reserves the right to assess whether the corrections are adequate under § 128.7(b).

V. RESERVATION OF RIGHTS

This letter does not waive any objection to the MTS, including but not limited to procedural defenses, evidentiary objections, and requests for sanctions under CCP § 128.5. Plaintiff reserves the right to file opposition papers addressing the MTS on the merits while preserving this § 128.7 safe-harbor notice.

Respectfully,

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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This safe-harbor letter is served pursuant to CCP § 128.7(c)(1) and is not filed with the Court unless the safe-harbor period expires without withdrawal or correction.